

WORKPLACE FAIRNESS POLICY

POLICY STATEMENT

At Spencer Ogden we are committed to providing equal opportunities to all employees, contractors, workers and job applicants. This policy covers employees at all levels located within the state of Oregon.

We are committed to ensuring that our workplaces are free from unlawful discrimination related to protected characteristics. These protected characteristics are age, disability, gender reassignment, marriage and civil partnership, pregnancy and maternity, race, religion or belief, sex and sexual orientation.

This policy impacts all areas of our business including recruitment, career development and training, terms of employment and benefits, grievances, performance and disciplinary procedures, dismissals and redundancies and the way we manage staff and interact with each other (including by e-mail). The principles set out in this policy apply not only in the workplace, but also outside the workplace in a work-related context (such as business trips, customer or supplier events and work-related social events).

We will take account of the principles set out in this policy in developing and applying all of our policies and procedures to ensure they do not discriminate unlawfully. Everyone is expected to enter into the spirit of the policy and to ensure that a positive equal opportunities culture exists by treating others on their merits and by disassociating themselves from any form of direct or indirect discrimination, victimisation or any other type of harassment.

To enable our people in this, you may be required to undertake equality and diversity training. Attendance at such training will be compulsory if you are asked to attend such a course.

TYPES OF DISCRIMINATION

There are a number of different types of unlawful discrimination. The main types are considered below with illustrative examples.

Direct discrimination arises when a person is treated less favourably because of a protected characteristic. It is important to realise that an individual does not actually have to have the characteristic themselves in order to suffer direct discrimination. It will be also unlawful if they are less favourably treated because they are thought to have the characteristic, or because someone they know has the characteristic. (associative and perception)

Examples of direct discrimination would include the following:

- A woman with young children is not employed because it is feared that she might be an unreliable member of staff;
- A man is dismissed because he has a paraplegic wife;
- A Sikh applicant for a senior post is turned down because it is feared he will not “fit in” with an existing (all white) team;
- A man is not given a pay rise because a homophobic manager wrongly assumes the employee is gay (even though he is actually heterosexual);
- A visually impaired person is turned down for a job because of a mistaken assumption that such people are unable to use computers.

Indirect discrimination occurs where an apparently neutral requirement is applied which is more difficult for members of certain groups to meet and which cannot be justified on objective grounds.

Examples of indirect discrimination are set out below:

- A policy that no members of the workforce can work part-time could constitute indirect discrimination as a higher proportion of women than men may choose to work on a part-time basis to meet caring responsibilities. It may not be justified if the employer's business needs can still be met by more flexible working arrangements;
- A requirement that an applicant must be a "recent graduate" may be indirect age discrimination against older workers. This could only be justified if asking for someone who has recently left university is a proportionate means of achieving a legitimate aim;

Discrimination against disabled people can also occur where a person is unfavourably treated because of something arising in consequence of his or her disability or where an employer fails to make a reasonable adjustment to accommodate the needs of a disabled person. It is important to realise that it is not only people who are visibly disabled who fall within the definition of people who are disabled. The definition extends to anyone who has a serious physical or mental impairment which has lasted a long time and has a significant impact in their ability to perform normal daily activities.

Examples:

- A requirement for a member of staff to hold a driving licence for a job which involves little travelling;
- Failure to recruit someone with hearing difficulties for a job which requires spoken communication without first considering whether suitable adjustments can be made to working arrangements.

Victimisation occurs when a person is subjected to a detriment because he or she has taken or intends to take action to assert the rights conferred by equality legislation or because he or she has assisted someone else with their complaint (for example by providing evidence).

Harassment occurs when a person is subjected to unwanted conduct (whether physical, verbal or non-verbal) related to a protected characteristic which has the purpose or effect of violating that person's dignity or making the work environment hostile, intimidating or offensive for that person. Please refer to the Company's Harassment Policy for more details.

Examples of inappropriate and unacceptable behaviour covered by the policy

ENFORCEMENT

The Company will not tolerate any form of discrimination. Members of staff who fail to comply with this policy will be subject to the Company's Disciplinary Procedure. Breaches will be regarded as serious disciplinary matters and will, if there has been victimisation, intentional discrimination or deliberate harassment, be regarded as potential gross misconduct leading to summary dismissal.

If you feel that you are experiencing unlawful discrimination, you should raise a grievance through the Company's grievance procedure. If you feel it is inappropriate to approach your manager, you may approach an independent member of management or the CCS Department. In cases of harassment the procedures set out in the Company's Harassment Policy should be used.

As of October 1, 2020, there is a new five-year statute of limitations for claims of unlawful discrimination under various Oregon laws covering discrimination based on multiple protected classes including race, color, religion, sex, sexual orientation, national origin, marital status, age, uniformed service members, or disability, as well as sexual assault.

Spencer Ogden shall not require or coerce our employees or workers to enter a nondisclosure or nondisparagement agreement. Any employee or worker claiming discrimination may voluntarily request to enter into an agreement containing a nondisclosure, nondisparagement, or no-rehire provision on the provision the agreement gives the employees seven days to revoke after signature. All employees or workers must document conduct that is unlawful under the law.

RECRUITMENT AND SELECTION

The Company aims to ensure that job applicants do not suffer unlawful discrimination. Recruitment procedures are reviewed regularly to ensure that individuals are treated on the basis of their relevant merits and abilities. Job selection criteria are regularly reviewed to ensure that they are relevant to the job and are not disproportionate. Shortlisting of applicants should be done by more than one person wherever possible.

Job advertisements will avoid stereotyping or using wording that may discourage groups with a particular protected characteristic from applying. They should include an appropriate short policy statement on equal opportunities and a copy of this policy shall be sent on request to those who enquire about vacancies.

Applicants will not be asked questions about health or disability before a job offer is made unless those questions are permitted by law, for example, to establish whether reasonable adjustments might be required for an interview or other selection process or for equal opportunities monitoring.

The Company is required by law to ensure that all employees are entitled to work in the UK. Assumptions about immigration status will not be made based on appearance or apparent nationality. All prospective employees, regardless of nationality, must be able to produce original documents (such as a passport) before employment starts, to satisfy current immigration legislation.

To ensure that this policy is operating effectively, and to identify groups that may be underrepresented or disadvantaged, the Company monitors applicants' ethnic group, gender, disability, sexual orientation, religion and age as part of the recruitment procedure. Provision of this information is voluntary and it will not adversely affect an individual's chances of recruitment or any other decision related to their employment. The information is removed from applications before shortlisting, and kept in an anonymised format solely for the purposes stated in this policy. Analysing this data helps the Company take appropriate steps to avoid discrimination and improve equality and diversity.

TRAINING, PROMOTION AND TERMS AND CONDITIONS

Employees will be given appropriate access to training to enable them to progress and promotion decisions will be made based on merit.

Workforce composition and promotions will be monitored to ensure equality of opportunity at all levels of the Company. Where appropriate, steps will be taken to identify and remove unjustified barriers and to meet the special needs of disadvantaged or underrepresented groups.

Terms and conditions, benefits and facilities will be reviewed regularly to ensure that they are available to all staff who should have access to them and that there are no unlawful obstacles to accessing them.

DISMISSAL

The Company will ensure that redundancy criteria and procedures are fair and objective and are not directly or indirectly discriminatory. The Company will ensure that poor performance and disciplinary procedures and penalties are applied without discrimination.

DISABILITY

The Company will take all reasonably practicable steps to ensure that disabled people are able to participate in its business activities on an equal basis with people who are not disabled. If you are disabled or become disabled, you are encouraged to tell the Company about your condition so that appropriate support can be provided.

If you experience difficulties at work because of your disability, you may wish to contact your line manager OR the CCS department to discuss any reasonable adjustments that would help overcome or minimise the difficulty. Your line manager or the CCS Department may wish to consult with you and your medical adviser(s)

about possible adjustments. The Company will consider the matter carefully and try to accommodate your needs within reason. If the Company concludes that a particular adjustment would not be reasonable, it will try to find a reasonable alternative solution.

The Company will monitor the physical features of its premises to consider whether they place disabled workers, job applicants or service users at a substantial disadvantage compared to other staff. Where reasonable, the Company will take steps to improve access for disabled staff and service users.

RESPONSIBILITY

The board of directors have overall responsibility for the effective operation of this policy and for ensuring compliance with discrimination law. Day-to-day operational responsibility has been delegated to the Human Resources Department and Internal Recruitment Department.

All managers must set an appropriate standard of behaviour, lead by example and ensure that those they manage adhere to the policy. Managers will be given appropriate training on equal opportunities awareness and equal opportunities recruitment and selection best practice. If you are involved in management or recruitment, or if you have any questions about the content or application of this policy, you should contact the Human Resources Department for further information.

MONITORING AND REVIEW OF THIS POLICY

This policy is reviewed annually in consultation with the board. Recommendations for change should be reported to the CCS department.

The Company will continue to review the effectiveness of this policy to ensure it is achieving its objectives. As part of this process, the Company monitors the composition of job applicants and the benefits and career progression of staff.

A handwritten signature in black ink, appearing to read 'Greg Morris', with a large, stylized loop at the end.

Greg Morris
Group Commercial Director
September 2020